



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 11 1991

DOT-E 10471

1. Chevron Resources Company, Hobson, Texas is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations subject to the limitations and special requirements specified herein. This exemption authorizes DOT specification tank car tanks loaded with sulfuric acid and sulfuric acid, spent, classed as corrosive materials to remain attached to transfer connections when the unloading process is discontinued, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This exemption is based on Chevron Resources Company's application of September 13, 1990, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Sulfuric acid and Sulfuric acid, spent, classed as corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Sulfuric acid and Sulfuric acid, spent.

5. REGULATION AFFECTED. 49 CFR Part 107, Appendix B, Subpart B; 174.67(i) and (j).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight

7. SAFETY CONTROL MEASURES.

a. Packagings prescribed are DOT Specification tank car tanks authorized in §173.272.

b. An employee, who is familiar with the nature and properties of the material, must be made responsible for unloading.

c. The employee responsible for unloading must be instructed on the procedures to be followed during unloading and, in the event of an emergency, has the authority and ability to halt the flow of product and take emergency actions.

d. When an electronic or mechanical monitoring device is used, the device must be capable of immediately halting the flow of product or of alerting the employee responsible for unloading in the event of an emergency.

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e. The electronic or mechanical monitoring device must provide immediate notification of any malfunction to the person responsible for unloading. In the case of malfunction, the device will no longer be relied upon, and instead the individual responsible for unloading must constantly observe the unloading process.

8. SPECIAL PROVISIONS.

a. Any manually operated switch providing access to the track on which the equipment is located must be lined against movement to that track and locked with an effective locking device (other than a railroad lock).

b. A derail (one that is capable of restricting access to that portion of track within the area on which the tank car tanks are located) must be positioned at least 50 feet from the end of the equipment to be protected by the blue caution sign, when locked in the derailing position with an effective locking device (other than a railroad lock) by an individual performing the unloading/loading operation.

c. Written safety procedures must be on file with the Office of Hazardous Materials Exemptions and Approvals and at each location where the unloading is performed and contain at least the following:

- monitoring the transfer process [see paragraphs 7 (b), (c), and (e)]
- employee safety
- unloading/loading procedures
- movement of tank cars adjacent to unloading/loading racks
- testing and maintenance of system components
- emergency measures

d. The marking requirements of Appendix B to Subpart B of Part 107 do not apply to tank cars unloaded under this process.

e. All unloading connections must be unhooked at the close of business.

9. REPORTING REQUIREMENTS. Any incident involving leakage or hose failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. November 30, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous
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U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.